

CV-26-002154 WRIGHT, SHANNA vs SODHI, JAKRUN S – a) Defendant’s Demurrer to Plaintiff’s First Amended Complaint-- SUSTAINED with leave to amend in part, OVERRULED in part; b) Defendant’s Motion to Strike Punitive Damages and Emotional Distress and Case of Action for Fraud - GRANTED with leave to amend.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a-b) The Court notes that the current pleadings do not appear to articulate recoverable damages in any case other than in the civil case CV-24-699. Requests for Judicial Notice Defendants' unopposed request for judicial notice of the complaint in the instant action is DENIED as moot; it is unnecessary for the Court to take judicial notice of filings in the instant case. Defendant's unopposed request for judicial notice of the Fee Arbitration Findings and Award filed on January 28, 2026, in Case No. 25-A-132 before the State Bar of California, Mandatory Fee Arbitration Program is GRANTED solely for the fact of the ruling and not for the factual findings. Plaintiff's unopposed request for judicial notice of three records from Case No. CV-24- 000699 in Stanislaus County Superior Court, entitled Shanna Wright v. Debbra Schlicht, is GRANTED. First cause of action for legal malpractice "To state a cause of action for legal malpractice, a plaintiff must plead '(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney's negligence.' " (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 179.) "To show damages proximately caused by the breach, the plaintiff must allege facts establishing that, 'but for the alleged malpractice, it is more likely than not the plaintiff would have obtained a more favorable result.' " (Ibid.) Here, the First Amended Complaint sufficiently pleads a cause of action for legal malpractice and is not uncertain. The First Amended Complaint pleads a duty owed by Defendants as legal counsel; that Defendants breach their duty by missing court deadlines; that Defendants' actions caused her to suffer damages; and that Plaintiff suffered damages, including adverse rulings and sanctions in the form of an attorney's fee award. At this stage, Plaintiff is required only to plead facts showing that it is more likely than not Plaintiff would have obtained a more favorable result. (Charnay, supra, 145 Cal.App.4th at 180.) The First Amended Complaint does so by pleading Plaintiff would have obtained a more favorable result with respect to the sanctions if deadlines were not missed. At this stage of the proceedings, Plaintiffs allegations are sufficient to state a cause of action. At the pleading stage, Plaintiff need not relitigate the entire case. Either the failure to oppose the anti-SLAPP motion or the bringing of a case in which no credible opposition to an anti-SLAPP motion could be made is actionable. "Settle and sue," cases are, at trial, determined by a preponderance of the evidence standard. (Masellis v. Law Office of Leslie F. Jensen (2020) 50 Cal.App.5th 1077.) The demurrer to the first cause of action for legal malpractice is OVERRULED. Second cause of action for breach of fiduciary duty "To establish a cause of action for breach of fiduciary duty, a plaintiff must demonstrate the existence of a fiduciary relationship, breach of that duty and damages." (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 182.) The First Amended Complaint sufficiently pleads a cause of action for breach of fiduciary duty and is not uncertain. Plaintiff alleges that Defendants concealed procedural failures which resulted in damages. The allegations are sufficient at this early stage of the case. The demurrer to the second cause of action for breach of fiduciary duty is OVERRULED. Third cause of action for breach of contract In the third cause of action, Plaintiff alleges that the existence of a contract, that Plaintiff performed by paying, that Defendants breached their contract by failing to perform legal services competently, and that Plaintiff suffered damages due to the breach. The allegations are not uncertain. Defendant argues that the breach of contract cause of action is barred by res judicata because there was a prior arbitration between the parties. As to fees, the matter has been determined by the arbitrator. As to other damages, the matter has not been determined. The demurrer to the third cause of action for breach of contract is OVERRULED. Fourth cause of action for fraud and punitive damages The First Amended Complaint adequately pleads the elements of a fraud cause of action. As to specificity, Plaintiff alleges that Defendant Sodhi knowingly made misrepresentations to Plaintiff regarding the status of her case, including for example, concerning Defendants' failure to timely respond to a dispositive motion. Plaintiff's allegations meet the requirement of specificity to plead fraud. But they are unsupported or insufficiently supported by the judicially noticeable case CV-24-699 in which Plaintiff did in fact have the ruling reversed on the anti-SLAPP issue. Representations that no irreparable harm had occurred appear to be true. Allegations for fraud must be pled with specificity. Allegations that some discovery was not conducted that was desired by Plaintiff is insufficient. The inclusion of the statement that "no irreparable harm had occurred," indicates there was likely some discussion about the missed deadline in which missing the deadline was acknowledged. The demurrer to the fourth cause of action for fraud is SUSTAINED and the motion to strike is MOOT. The punitive damages request is STRICKEN. Emotional distress damages Defendant argues that Plaintiff's emotional distress damages should be dismissed because

Plaintiff's injuries are purely economic losses. Under these circumstances *Merenda v. Superior Court* (1992) 3 Cal.App.4th 1 controls and everything outside of negligence is insufficiently pled. Leave to Amend Plaintiff is self-represented and may be able to repair the defects in the pleadings. Plaintiff is given 20 days to file an amended complaint. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 71535c06b6134dee8bc0c327e8f7fc46f9d9027da7a2b987deab8e98170ca35d

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a-b) The Court notes that the current pleadings do not appear to articulate recoverable damages in any case other than in the civil case CV-24-699.

Requests for Judicial Notice

Defendants' unopposed request for judicial notice of the complaint in the instant action is DENIED as moot; it is unnecessary for the Court to take judicial notice of filings in the instant case.

Defendant's unopposed request for judicial notice of the Fee Arbitration Findings and Award filed on January 28, 2026, in Case No. 25-A-132 before the State Bar of California, Mandatory Fee Arbitration Program is GRANTED solely for the fact of the ruling and not for the factual findings. .

Plaintiff's unopposed request for judicial notice of three records from Case No. CV-24-

000699 in Stanislaus County Superior Court, entitled Shanna Wright v. Debbra Schlicht, is GRANTED.

First cause of action for legal malpractice

"To state a cause of action for legal malpractice, a plaintiff must plead '(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney's negligence.' " (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 179.) "To show damages proximately caused by the breach, the plaintiff must allege facts establishing that, 'but for the alleged malpractice, it is more likely than not the plaintiff would have obtained a more favorable result.' " (*Ibid.*)

Here, the First Amended Complaint sufficiently pleads a cause of action for legal malpractice and is not uncertain. The First Amended Complaint pleads a duty owed by Defendants as legal counsel; that Defendants breach their duty by missing court deadlines; that Defendants' actions caused her to suffer damages; and that Plaintiff suffered damages, including adverse rulings and sanctions in the form of an attorney's fee award.

At this stage, Plaintiff is required only to plead facts showing that it is more likely than not Plaintiff would have obtained a more favorable result. (*Charnay, supra*, 145 Cal.App.4th at 180.) The First Amended Complaint does so by pleading Plaintiff would have obtained a more favorable result with respect to the sanctions if deadlines were not missed. At this stage of the proceedings, Plaintiff's allegations are sufficient to state a cause of action.

At the pleading stage, Plaintiff need not relitigate the entire case. Either the failure to oppose the anti-SLAPP motion or the bringing of a case in which no credible opposition to an anti-SLAPP motion could be made is actionable.

"Settle and sue," cases are, at trial, determined by a preponderance of the evidence standard. (Masellis v. Law Office of Leslie F. Jensen (2020) 50 Cal.App.5th 1077.)

The demurrer to the first cause of action for legal malpractice is OVERRULED.

Second cause of action for breach of fiduciary duty

"To establish a cause of action for breach of fiduciary duty, a plaintiff must demonstrate the existence of a fiduciary relationship, breach of that duty and damages." (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 182.)

The First Amended Complaint sufficiently pleads a cause of action for breach of fiduciary duty and is not uncertain. Plaintiff alleges that Defendants concealed procedural failures which resulted in damages. The allegations are sufficient at this early stage of the case.

The demurrer to the second cause of action for breach of fiduciary duty is OVERRULED.

Third cause of action for breach of contract

In the third cause of action, Plaintiff alleges that the existence of a contract, that Plaintiff performed by paying, that Defendants breached their contract by failing to perform legal services competently, and that Plaintiff suffered damages due to the breach. The allegations are not uncertain. Defendant argues that the breach of contract cause of action is barred by res judicata because there was a prior arbitration between the parties. As to fees, the matter has been determined by the arbitrator. As to other damages, the matter has not been determined.

The demurrer to the third cause of action for breach of contract is OVERRULED.

Fourth cause of action for fraud and punitive damages

The First Amended Complaint adequately pleads the elements of a fraud cause of action. As to specificity, Plaintiff alleges that Defendant Sodhi knowingly made misrepresentations to Plaintiff regarding the status of her case, including for example, concerning Defendants' failure to timely respond to a dispositive motion. Plaintiff's allegations meet the requirement of specificity to plead fraud. But they are unsupported or insufficiently supported by the judicially noticeable case CV-24-699 in which Plaintiff did in fact have the ruling reversed on the anti-SLAPP issue. Representations that no irreparable harm had occurred appear to be true.

Allegations for fraud must be pled with specificity. Allegations that some discovery was not conducted that was desired by Plaintiff is insufficient. The inclusion of the statement that "no irreparable harm had occurred," indicates there was likely some discussion about the missed deadline in which missing the deadline was acknowledged.

The demurrer to the fourth cause of action for fraud is SUSTAINED and the motion to strike is MOOT. The punitive damages request is STRICKEN.

Emotional distress damages

Defendant argues that Plaintiff's emotional distress damages should be dismissed because Plaintiff's injuries are purely economic losses. Under these circumstances *Merenda v. Superior Court* (1992) 3 Cal.App.4th 1 controls and everything outside of negligence is insufficiently pled.

Leave to Amend

Plaintiff is self-represented and may be able to repair the defects in the pleadings. Plaintiff is given 20 days to file an amended complaint.

The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22: